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Morgan County
Kimberly Nickles, Clerk
Instrument 911696
04/17/2025 @ 11:56:24 AM
COVENANTS, RESTRICTIONS, ARTIC
Book 300 @ Page 182
Pages Recorded 5
Recording Cost $ 12.00

CMA Board approval: April 14, 2025
Effective date: May 1, 2025

COOLFONT MOUNTAINSIDE ASSOCIATION
POLICY RESOLUTION 2025-03
EXCESSIVE NOISE POLICY

AUTHORITY

WHEREAS, CMA Articles of Incorporation stipulate a reason for CMA existence is to provide exterior maintenance for the lots and homes within The Properties, maintain unkempt lands, fix assessments (or charges) to be levied against The Properties, and do any other thing that, in the opinion of the Board, promotes the common benefit and enjoyment of the residents;

WHEREAS, the CMA Declaration of Covenants and Restrictions, Article IV, § 2, (c) states the right of the Association, as provided in its Articles and Bylaws, to suspend the enjoyment rights of any Member for any period during which any assessment remains unpaid, and for any period not to exceed thirty (30) days for any infraction of its published rules and regulations;

WHEREAS, The CMA Declaration of Covenants and restrictions, Article IX, § 3 states enforcement of these covenants and restrictions shall be by any proceeding at law or in equity against any person or persons violating or attempting to violate any covenant or restriction, either to restrain violation or to recover damages, and against the land to enforce any lien created by these covenants; and failure by the Association or any Owner to enforce any covenant or restriction herein contained shall in no event be deemed a waiver of the right to do so thereafter;

WHEREAS, the CMA Bylaws, Article 5, § 5.2 states the Board shall make and publish rules and regulations, not inconsistent with the Articles, the Covenants, or law for the use and enjoyment of, and the imposition of penalties with respect thereto, the Common Properties by members, immediate family of members, guests, and tenants; such rules and regulations shall include procedures to assure any penalties shall not be arbitrary or unreasonable and provide a mechanism for appeal; and Section 5.3 states after the Board has adopted and published such rules and regulations, if the personal conduct of any member, guest, or tenant violates such theBoard may suspend the rights of any such person and the responsible member;

WHEREAS, the CMA Bylaws, Article 5, § 5.3 states after the Board has adopted and published such rules and regulations, if the personal conduct of any Member, guest, or tenant violates such rules and regulations, the Board may, in accordance with Section 5.2, suspend the rights of any such person and of the responsible Member;

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WHEREAS, the CMA Bylaws, Article 8, § 8.1 (d) states the Board shall have power to adopt and publish the rules and regulations, including fees, if any, governing the use of the Common Properties and facilities as provided for in Section 5.2, and (f) to enforce the suspension of the right to use the common recreational facilities or water system by a Member during any period in which such Member is delinquent in the payment of any assessment or usage fee levied by the Association. Such right may also be suspended for Members, after notice and opportunity for hearing before the Board, for infraction of the published rules and regulations of the Association established pursuant to Article 5; and

WHEREAS, the CMA Declaration of Covenants and Restrictions, Article VI, § 9 states no noxious, offensive or potentially dangerous activity shall be permitted on any lot or within the subdivision, including operation of loud motor vehicles of any kind or firearms of any kind, hunting, open fires, loud parties or pets, fireworks or bright external lights. After 11 pm outside activity that can disturb other residents must be kept to an absolute minimum except in case of emergency.

PURPOSE

WHEREAS, to promote the peaceful enjoyment of all CMA properties and common lands, the Board resolves to establish rules, enforcement policies, and procedures in accordance with the CMA Covenants and Restrictions, Bylaws, and rules and regulations so that it may fairly and consistently enforce the governing documents and ensure the public health and safety of all owners, guests, tenants, lessees, occupants, invitees, and any other persons occupying or visiting the premises of the CMA owners; and

WHEREAS, in accordance with Morgan County, WV Ordinance to Abate Excessive Residential Noise Where Such Noise is Deemed a Public Nuisance, the CMA resolves to adopt this policy to promote a quiet and peaceful environment and to abide by local government regulations; and

WHEREAS, the CMA does hereby declare noise levels in excess of 65 decibels (dB), which levels are either intermittent or continuous for a duration of at least thirty minutes, to be a hazard to public health and safety within the confines of CMA properties and that such noise levels constitute a public nuisance, and are subject to abatement by the procedures set forth herein.

SCOPE and INTENT

This resolution is applicable to all owners, guests, tenants, lessees, occupants, invitees, and any other persons occupying the premises of the CMA owners or using the common properties, facilities, or amenities included thereby.

Each owner is responsible for compliance with this policy and notification, consisting of a copy of this policy or a separate Board determined document containing essential portions of this

and other CMA policies, to all guests, tenants, lessees, occupants, invitees, and any other persons occupying or visiting any property within CMA, and assisting the Board in enforcing this policy.

SPECIFICATIONS

THEREFORE, be it resolved the Board of Directors adopts the following excessive noise policy:

1) **Construction noise**: Loud construction work is permitted between 7:30 am and 5:00 pm, Monday through Friday. Loud construction activity includes, but is not limited to, tree removal, framing and carpentry, concrete pouring, roofing, outside use of air compressors, power tools, etc. Only construction activity of a quiet nature is permitted at other times.
2) **Home/yard maintenance noise**: It is a violation to operate or permit the use of power tools, yard maintenance equipment, and similar devices producing plainly audible sound levels from one residential property to another or from the street between the hours of 5:00 pm to 7:30 am.
3) **Motorized vehicles**: It is a violation to operate or permit the use of unlicensed, unregistered, or prohibited motorized vehicles without standard or required noise attenuating systems on CMA properties. Exception: Vehicles required for maintenance of CMA roads and common lands.
4) **Domestic pets:** It is a violation for any person residing at a CMA property to permit domestic pets to make or cause sufficient noise to interfere with other residents' rest or peaceful enjoyment of their property. It is a violation to maintain pets that make such noise outside a residence when no one is present to control such noise.
5) **Amplifiers, audio systems, sound systems, etc.**: It is a violation to allow or permit operation of audio systems (including automotive audio systems), speakers, amplifiers, radios, televisions, musical instruments, and similar devices to produce noise sufficient to be plainly audible and disturbing to a person in an adjacent property or from the street. Quiet hours in CMA are from 11:00 pm to 7:30 am as posted throughout the community, and all noise must be kept to an absolute minimum except in case of emergency.
6) **Parties and other social events**: It is a violation to allow people attending to produce noise sufficient to be plainly audible and disturbing to a person in an adjacent property.
7) **Other excessive noise**: Other noise production sources may be encountered and the subject of complaint by residents. It is left to the discretion of the Board whether such sources should be considered under this policy for good cause shown on behalf of the owners, their families, or guests as being a public nuisance.

ENFORCEMENT

The owner is primarily responsible for noise complaints related to their property and a complainant should first attempt to contact the owner of the property or a designated local agent. If that action does not result in a positive response resolving the issue, the complainant may submit a written noise complaint to the Board. A complainant may also contact local authorities and file a noise or nuisance complaint regarding any activity within CMA.

On receipt of an excessive noise complaint:

1. The Board and/or its designee(s) will investigate the alleged violation within three (3) calendar days of receipt of such written complaint. The written complaint may note dates and times of the alleged occurrence, and evidence, in the form of recordings and witness statements. If it is determined by the Board's investigation a violation has occurred, the Board will take the following actions:
    a. Issue a "Notice of Violation Letter" by USPS Priority mail and/or email to the address of the member or owner of record in the records of CMA. It shall be the duty of each owner of a property to provide the Association with a current address.
    b. The letter will notify the owner of an alleged excessive noise violation and set forth the rule violated, the possible fine(s) imposed, and give the owner the opportunity to appeal at a hearing with the Board.
    c. Upon an owner's request, the Board will schedule a hearing within seven (7) calendar days at which the responsible owner and complainant may both present relevant facts, evidence, witness statements, and information. Any fines levied against the owner will be held in abeyance until the hearing by the Board.
    d. If no request for a hearing or other contact has been received by the Board within seven (7) calendar days of the date of the Notice of Violation Letter, the Board will finalize a determination of whether or not a violation occurred. If the Board determines a violation occurred, the Board will impose a disciplinary action, or a fine(s).

FINES

Fines will be imposed pursuant to the Schedule of CMA Fines, Fees, and Charges, approved and published each year by the CMA Board of Directors.

OTHER INFORMATION

Complainants may use all other methods of filing complaints about noise at their discretion including, but not limited to, Morgan County Sheriff non-emergency dispatch number, 304-258-0305, for reporting a legal complaint of residential public nuisance noise under Morgan County Ordinance. This is considered completely separate from CMA's policy and processes.

These rules shall remain in effect until otherwise rescinded, modified, or amended by a majority of the Board of Directors and recorded in the Morgan County, WV Clerk's Office.

COOLFONT MOUNTAINSIDE ASSOCIATION
POLICY RESOLUTION 2025-03 ACTION RECORD

Duly adopted at a meeting of the Board of Directors held on April 14, 2025:

Motion by: _____Iris Melton_____ Seconded by: _____Steve Katz_____

VOTE:

	YES	NO	ABSTAIN	ABSENT
President, Steve Katz	X			
Vice President, Norm Rosenberg	X			
Treasurer, Dawne Holz				X
Secretary, Valerie Creason	X			
Director, Dave Creason	X			
Director, Iris Melton	X			
Director, Jack Wennersten				X

ATTEST:

Valerie Lm Creason _____ 04/15/2025 _____

Secretary Date

Resolution effective date: May 1, 2025